Superior Court of the State of California
County of Orange

TENTATIVE RULINGS FOR DEPARTMENT C32
JUDGE LEE L. GABRIEL, Dept. C32

Date: August 18, 2026

APPEARANCES: Department C32 conducts non-evidentiary proceedings, such as law and motion, remotely, by Zoom videoconference. All counsel and self-represented parties appearing for such hearings must check-in online through the Court's civil video appearance website at https://www.occourts.org/media-relations/civil.html prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Check-in instructions and instructional video are available at https://www.occourts.org/mediarelations/aci.html. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" ("Appearance Procedures") and "Guidelines for Remote Appearances" ("Guidelines") are also available at https://www.occourts.org/mediarelations/aci.html.

Parties preferring to appear in-person for law and motion hearings may do so pursuant to Code of Civil Procedure § 367.75 and OCLR 375.

All hearings are open to the public.

If you desire a transcript of the proceedings, you must provide your own court reporter (unless you have a fee waiver and request a court reporter in advance). Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- Civil Court Reporter Pooling; and
- Court Reporter Interpreter Services

These are the Court's tentative rulings. They may become an order if the parties do not appear at the hearing. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

If the parties agree to submit on the Court's tentative rulings, please call the Court Clerk to inform the court that all parties submit on the Court's tentative ruling **(657-622-5232)**. The tentative ruling will then become the order of the Court upon a party or parties informing the Court that all parties submit to the Court's tentative ruling.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

#	Case Name	Tentative
1.	**ZHEJIANG QUNYING VEHICLE CO LTD. VS. CHO INTERNATIONAL INC.** **2023-01306529**	**MOTION TO APPEAR PRO HAC VICE** The Application of B. Robert Liu to Appear Pro Hac Vice for plaintiff Zhejiang Qunying Vehicle Co. Ltd. is GRANTED. Moving attorney has satisfied all the requirements of California Rules of Court, Rule 9.40. Moving attorney to give notice.
2.	**IMPERIAL BAG & PAPER CO LLC VS. ORANGE COURIER INC** **2025-01497909**	**MOTION TO BE RELIEVED AS COUNSEL OF RECORD** The motion of attorney William Kersten to withdraw as attorney of record for defendant Orange Courier, Inc. is GRANTED. (Code Civ. Proc. § 284, CRC 3.1362.) William Kersten will be relieved as counsel of record for client effective upon filing of a proof of service of the signed order on client. The Court advises Defendant that in California a corporation may not represent itself, except in a small claims proceeding. (*Merco Construction Engineers, Inc. v. Municipal Court* (1978) 21 Cal.3d 724, 147.) Thus, Defendant "must obtain new counsel, or risk forfeiting important rights through nonrepresentation." (*Gamet v. Blanchard* (2001) 91 Cal.App.4th 1276, 1284, fn. 5.) Moving attorney is to give notice.
3.	**CINEMATIC CAPITAL CORP. VS. SAID** **2023-01343920**	1. **MOTION TO COMPEL PRODUCTION** 2. **MOTION FOR REQUESTS FOR ADMISSIONS** Defendant Mohamed Said's Motions to Compel Further Responses to Requests for Production, set one, and Requests for Admission are CONTINUED to 9/22/26 at 9:00 a.m., in Dept. C32. First, the Court finds the parties meet and confer efforts to be insufficient. "A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion." (Code Civ. Proc., § 20216.040(a).) A letter is not an approved meet and confer method, further only allowing three days to provide supplemental responses is not good faith. Additionally, Plaintiff's already served supplemental responses contain numerous boilerplate and inappropriate objections such as objecting to producing medical records and refusing to respond to requests for admission on the basis of their numbering.

		Second, Defendants has filed new separate statements which cure the defects in the prior statements. (See Cal. Rules of Court, rule 3.1345(c).) However, they present new arguments which are being raised for the first time in reply. Additionally, the replies themselves also raise new arguments such as the responses not being verified. (See *Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537-1538 [the general rule of precluding new evidence in reply ensures the opposing party has an opportunity to counter any arguments].) The parties are ORDERED to meet and confer in good faith in an attempt to resolve the outstanding discovery issues **in person, by telephone, or by videoconference** within 15 days of this order. If Plaintiff agrees to serve supplemental responses, Plaintiff shall serve supplemental verified responses and produce additional documents no later than 20 court days prior to the continued hearing date. Each party may file a statement not to exceed 5 pages addressing the parties meet and confer efforts no later than 15 court days before the hearing. For each Motion, Defendant's counsel may file and serve a supplemental memorandum of remaining issues, no later than 9 court days before the continued hearing date and not to exceed ten pages, including: (1) attaching a copy of Defendant's supplemental responses, if any; and (2) a concise description of any remaining dispute including identification of the specific requests which remain in dispute. For each motion Plaintiff's counsel may file a responsive supplemental memorandum, not to exceed ten pages, no later than 5 calendar days before the continued hearing date.
4.	**EDWARDS VS. TALEBI** **2025-01522002**	**MOTION TO SERVE BY ELECTRONIC MAIL OR ALTERNATIVETO SERVE BY PUBLICATION** Plaintiff Justin Edwards' Motion for Alternate Service of Summons on Defendant Amir-Hossein Talebi is GRANTED in part and DENIED in part. Plaintiff moves to serve Defendant by electronic mail pursuant to California Code of Civil Procedure section 413.30. In the alternative, Plaintiff seeks to serve Defendant by publication pursuant to section 415.50. <u>Service by Electronic Mail</u>: Section 413.30 provides in pertinent part, "(a)(1) If no provision is made in this chapter or other law for the service of summons, or if a plaintiff, despite exercising reasonable diligence, has been unable to effect service of the summons by any of the methods authorized under this chapter, the court in which the action is pending may, upon motion, direct that summons be served in a manner that is reasonably calculated to give actual notice to the party to be served, including by electronic mail or other electronic technology, and that proof of such service be made as prescribed by the court. [¶] (2) A plaintiff seeking to establish reasonable diligence under this section shall set forth facts

detailing all attempts to serve the defendant by each of the methods prescribed by statute, including facts demonstrating why each method was unsuccessful at every address or location where the defendant is likely to be found."

When serving an individual within this state, the Code provides five different methods of service: (1) personal service (§ 415.10); (2) substitute service (§ 415.20); (3) acknowledgement of receipt of summons by regular mail with return acknowledgment of receipt (§ 415.30); and (4) service by publication (§ 415.50). Generally, "in order to obtain in personam jurisdiction through any form of constructive service there must be strict compliance with the requisite statutory procedures." (*Zirbes v. Stratton* (1986) 187 Cal.App.3d 1407, 1417.)

Though Plaintiff has shown he has exercised reasonable diligence to serve Defendant, it is unclear that service via electronic mail will be "reasonably calculated to give actual notice to the party to be served." (Code Civ. Proc. § 413.30; Willoughby Decl., ¶¶ 4, 8-10.) Plaintiff's counsel states that a background search on Defendant was conducted through Delvepoint Skip-Trace which identified email addresses of TAMIRHOSSEIN@YAHOO.COM, which was used by Defendant when he occupied addresses in the city of Glendale, and TALEBIAMIR804@GMAIL.COM, which was used by Defendant when he occupied an address in the city of Irvine. (Willoughby Decl., ¶ 15.) However, Plaintiff has not submitted any evidence to show that the aforementioned email addresses were verified as active.

Therefore, Plaintiff's request to serve the Summons and Complaint by electronic mail on Defendant is DENIED without prejudice.

<u>Service by Publication</u>:

Section 415.50 provides in pertinent part, "(a) A summons may be served by publication if upon affidavit it appears to the satisfaction of the court in which the action is pending that the party to be served cannot with reasonable diligence be served in another manner specified in this article and that either: [¶] (1) A cause of action exists against the party upon whom service is to be made or he or she is a necessary or proper party to the action.
[¶] (2) The party to be served has or claims an interest in real or personal property in this state that is subject to the jurisdiction of the court or the relief demanded in the action consists wholly or in part in excluding the party from any interest in the property."

Plaintiff has shown he has exercised reasonable diligence to serve Defendant and that Defendant is a necessary party. Therefore, the court finds that resort to service by publication is necessary.

Plaintiff's request to serve the Summons and Complaint by publication in the Dana Point Times is GRANTED. Such publication shall run weekly for four consecutive weeks.

		Moving party to give notice.
6.	**LEVINE VS. FAIRCHILD 2025-01534040**	**MOTION TO DISQUALIFY ATTORNEY OF RECORD** Plaintiff Andrew S. Levine's motion to disqualify Alex Wesevich, Esq. as counsel for defendant Aaron Fairchild is DENIED. Plaintiff's Evidentiary Objections to Defendant's Evidence is SUSTAINED as to Objection Nos. 8 and 12 and OVERRULED as to the remaining. Plaintiff moves to disqualify Wesevich on the grounds his representation of Defendant violates Rules of Professional Conduct, Rules 3.7 and 1.7. <u>Disqualification under Rule 3.7</u>: Rules of Professional Conduct, Rule 3.7 provides: "(a) A lawyer shall not act as an advocate in a trial in which the lawyer is likely to be a witness unless: [¶] (1) the lawyer's testimony relates to an uncontested issue or matter; [¶] (2) the lawyer's testimony relates to the nature and value of legal services rendered in the case; or [¶] (3) the lawyer has obtained informed written consent from the client. . ." "A comment to the rule clarifies that the informed-consent exception is not absolute: 'Notwithstanding a client's informed written consent, courts retain discretion to take action, up to and including disqualification of a lawyer who seeks to both testify and serve as an advocate, to protect the trier of fact from being misled or the opposing party from being prejudiced.' [Citations.] 'In other words, a court retains discretion to disqualify a likely advocate-witness as counsel, notwithstanding client consent, where there is "a convincing demonstration of detriment to the opponent or injury to the integrity of the judicial process." ' [Citations.]" (*Lopez v. Lopez* (2022) 81 Cal.App.5th 412, 423 (*Lopez*).) "Rule 3.7 is limited on its face to trial." (*Lopez, supra,* 81 Cal.App.5th at p. 423.) "Nevertheless, to effectuate the rule's purpose of avoiding fact finder confusion, we interpret the rule's use of the term 'trial' to encompass a pretrial evidentiary hearing at which counsel is likely to testify." (*Doe v. Yim* (2020) 55 Cal.App.5th 573, 583 (*Doe*).) Further, " 'most courts recognize that an attorney who intends to testify at trial may not participate in "any pretrial activities which carry the risk of revealing the attorney's dual role to the jury." [Citation.] In particular, a testifying attorney should not take or defend depositions.' [Citations]" (*Ibid.*)

		"In exercising its discretion to disqualify counsel under the advocate-witness rule, a court must consider: (1) ' " 'whether counsel's testimony is, in fact, genuinely needed' " '; (2) 'the possibility [opposing] counsel is using the motion to disqualify for purely tactical reasons'; and (3) 'the combined effects of the strong interest parties have in representation by counsel of their choice, and in avoiding the duplicate expense and time-consuming effort involved in replacing counsel already familiar with the case.' [Citation.] '[T]rial judges must indicate on the record they have considered the appropriate factors and make specific findings of fact when weighing the conflicting interests involved in recusal motions.' [Citation.]" (*Doe, supra,* 55 Cal.App.5th at pp. 583–84.) Plaintiff moves to disqualify Wesevich from the entire action on the grounds that Wesevich is a material witness to the events alleged in the Second Amended Complaint ("SAC"). Plaintiff states that Wesevick worked as a paralegal at Fairchild & Levine LLP, and a significant portion of the fiduciary breaches and related misconduct he alleges against Defendant involve his favoritism toward, protection of, and actions taken on behalf of Wesevich, including decisions made without consultation and actions taken over Plaintiff's objection. (Levine Decl., ¶ 3.) Further, the SAC alleges that "in or around late July 2025, Fairchild conducted an undisclosed "investigation" with certain staff members, including employees A.W. (Alex Wesevich), T.B., and L.E., regarding accusations and narratives about Levine, without disclosing the scope, questions, or content of the investigation to Levine, and while leveraging Firm systems and access to amplify the accusations." (SAC, ¶ 37.) The SAC further alleges that Weservich was the subject of concerns regarding the time-entry manipulation and billing irregularities raised by Plaintiff to Defendant. (SAC, ¶ 62.) Levine anticipates calling Wesevich as a witness at trial regarding these matters, and others including issues of favoritism, firm management decisions, disparagement/interference with employees, and timekeeping practices. (Levine Decl. ¶ 15.) Defendant disputes that Wesevich is a material witness and argue Plaintiff's own responses show alternative witnesses who can testify about their own communications and observations. Further, Defendant contends Fairchild & Levine, LLP's RingCentral messages, emails, time records, policies, and other business records capture substantial portions of the events. (Opp., 6:20-22.) As to the billing allegations, Defendant argues not only does Plaintiff admit he cannot identify every allegedly affected client or invoice and relies heavily on records, but Plaintiff's claim that Fairchild APC's time is not a genuine economic charge rests on the ownership relationship and his stated belief that Fairchild has not transferred personal funds, not on evidence of falsified time. (Wesevich Decl., ¶ 18, Ex. F [Response Nos. 112-118].) Based on the conflicting evidence submitted by the parties, there appears to be a genuine risk that Wesevich's testimony maybe

		necessary at least as to Wesevich's timekeeping practices. However, Plaintiff's request to disqualify Wesevich from the entire action is not supported by Rule 3.7. Rule 3.7 is limited to trial, any pretrial activities which carry the risk of revealing the attorney's dual role to the jury, and the taking or defending of depositions by a testifying attorney. (*Doe, supra,* 55 Cal.App.5th at pp. 583.) Further, here, Defendant has given informed written consent to Wesevich's continued representation of Defendant in the pretrial and non-witness aspects of this action. (Fairchild Decl., ¶ 12.) Wesevich states in his declaration that before Plaintiff filed his motion to disqualify him, Defendant and Wesevich had already decided that, if this action proceeds to trial and Wesevich is expected to testify, Defendant will associate separate trial counsel. (Wesevich Decl., ¶ 7.) Under this plan, Wesevich will not act as trial advocate, sit at counsel table before the trier of fact, examine witnesses, argue to the trier of fact, or otherwise present the case at trial. (Wesevich Decl., ¶ 7.) If Wesevich is deposed or required to testify at an evidentiary hearing, separate counsel will handle the examination or advocacy associated with Wesevich's testimony. (Wesevich Decl., ¶ 7.) Wesevich avers that he disclosed this plan to Plaintiff in writing on December 31, 2025, several months before Plaintiff filed this Motion. (Wesevich Decl., ¶ 8, Ex. B.) Here, the advocate-witness concern is mostly addressed by Defendant's informed written consent to Wesevich's continued representation and Defendant's agreement to have separate counsel represent Defendant at trial and if Wesevich is deposed or required to testify at an evidentiary hearing. Additionally, the court will order that Wesevich will not represent Defendant at any pretrial activities which carry the risk of revealing the attorney's dual role to the jury, and not take or defend any depositions in this action. (*Doe, supra,* 55 Cal.App.5th at pp. 583.) <u>Disqualification under Rule 1.7</u>: Rule 1.7, subdivision (b) provides: "A lawyer shall not, without informed written consent from each affected client and compliance with paragraph (d), represent a client if there is a significant risk the lawyer's representation of the client will be materially limited by the lawyer's responsibilities to or relationships with another client, a former client or a third person, or by the lawyer's own interests." Here, Defendant has given his informed written consent under Rule 1.7 to Wesevich continuing to represent him in the pretrial and non-witness aspects of this action. (Fairchild Decl., ¶ 12.) There is currently no claim by Plaintiff against Wesevich, no defense requiring Defendant to blame Wesevich, and no identified strategic decision on which their interests presently diverge. Further, to the extent Plaintiff states he anticipates that Wesevich may be named as a defendant, Defendant and Wesevich state they will reassess if actual adversity develops. (Wesevich Decl., ¶¶ 9-10; Fairchild Decl., ¶ 13.)

		Therefore, disqualification of Wesevich under Rule 1.3 is not warranted. Moving party to give notice.
7.	**MONSTER ENERGY COMPANY VS. C.H. ROBINSON WORLDWIDE, INC.** **2026-01537801**	**1. MOTION FOR ORDER TO STAY PROCEEDINGS** Defendant C.H. Robinson's (CHR) Motion to Stay Proceedings is DENIED. Plaintiff's objections are overruled. Plaintiff's requests for judicial notice are granted. The parties dispute the proper forum for this action. CHR argues the Customs Power of Attorney agreement applies and Minnesota is the proper forum. Alternatively, CHR argues Florida is the proper forum because GSDMIA already filed an action regarding the claims in Florida. Monster argues the Warehouse Agreement applies and the proper forum is California. First, as to the Warehouse Agreement, it is not clear the document is an enforceable contract. The Agreement is unsigned and is labeled "CONFIDENTIAL DRAFT FOR DISCUSSION PURPOSES ONLY." However, David Kitashima from CHR sent an email on 1/4/23 to two Monster employees stating there were a "few adjustments to the rates for the Jacksonville warehouse" and those were added "to the attached contract." (Carver Decl., Ex. 1.) Kitashima further stated the rates would be "valid starting on 2/1/23." (Carver Decl., Ex. 1.) Kitashima attached the Warehouse Agreement at issue. On 12/5/24, Kitashima sent an email to Monster providing a similar contract for 2025. (Carver Decl., Ex. 3.) The warehouse agreement attached to the 2025 email also has "CONFIDENTIAL DRAFT FOR DISCUSSION PURPOSES ONLY." Formation of a contract requires assent through an offer communicated to the offeree and acceptance communicated to the offeror. (*Moorpark v. Moorpark Unified School Dist*. (1991) 54 C.3d 921, 930.) Acceptance of a written offer may be oral or manifested through conduct. (Rest.2d, Contracts § 19.) Carver states in his declaration, "[s]tarting February 1, 2023, and throughout 2023, CHR invoiced MEC at the new, adjusted rates for labor and full pallet storage set forth in the January 4, 2023 email and attached Warehouse Agreement …." (Carver Decl., ¶ 10.) Further, the contract itself provides "[i]n the absence of written acceptance, the act of tendering Goods … within 30 days from the proposal date shall constitute such acceptance by Depositor." (ROA 22, Ex. 1.) CHR argues the contract is unsigned, watermarked as a discussion draft only, has comments in the margins, does not have standard operating procedures, is self-contradicting, and was disavowed by

		Carver. A contract is not implied-in-fact simply because the acceptance was not manifested through a written signature. (Rest.2d, Contracts § 19.) Further, even though the written terms of the contract had "CONFIDENTIAL DRAFT FOR DISCUSSION PURPOSES ONLY," the parties still acted on the terms of the contract. The fact the parties acted on the terms of the contract manifests the intent to be bound by the contract. CHR provides no authority which states a contract cannot have terms annotated in the margins or requires standard operating procedures. The contract is not self-contradictory; having an arbitration clause and a forum selection clause is common where parties may elect to try a case rather than submit to binding arbitration if they agree to waive arbitration. Finally, as to Monster disavowing the contract, CHR points to a series of emails on December 6, 2024. In the emails Kitashima sends Carver the updated rates for 2025, to which Carver responds they do not have a contract and intends to vacate the warehouse on December 31, 2024. Kitashima states there was a contract in place since 2021 which was unsigned but they have been utilizing the rates and requested 90 days notice. (Vestal Decl., Ex. 6.) CHR provides no authority which finds a contract void and unenforceable if the party seeking to enforce its terms had previously disavowed the terms. Instead, such failure to follow the terms of the contract would allow for the other party to claim a breach of contract. As to the POA, its terms do not address disputes related to services for warehousing. The terms and conditions are limited to those related to customs. "Company acts as the 'agent' of Customer for the purpose of performing duties in connection with the entry and release of goods, post entry services, the securing of export licenses, the filing of export and security documentation on behalf of Customer and other dealings with Government Agencies, or for arranging for transportation services, both domestically and internationally, or other logistics services in any capacity other than as a carrier." (Vestal Decl., Ex. 4.) "In a contract dispute in which the parties' agreement contains a forum selection clause, a threshold issue in a forum non conveniens motion is whether the forum selection clause is mandatory or permissive. A mandatory clause ordinarily is given effect without any analysis of convenience; the only question is whether enforcement of the clause would be unreasonable. But, if the clause merely provides for submission to jurisdiction and does not expressly mandate litigation exclusively in a particular forum, then the traditional forum non conveniens analysis applies." (*Korman v. Princess Cruise Lines, Ltd.* (2019) 32 Cal.App.5th 206, 215 (cleaned up).) "When a case involves a mandatory forum selection clause, it will usually be given effect unless it is unfair or unreasonable. Both California and federal law presume a contractual forum selection

clause is valid and place the burden on the party seeking to overturn the forum selection clause." (*Id*. at 216 (cleaned up).)

Here, the forum selection clause is mandatory because it states the parties waive any right to change venue and CHR has not met its burden of showing the forum selection clause is unreasonable. (ROA 22, Ex. 1.)

2. MOTION FOR ORDER TO STAY PROCEEDINGS

Defendant Seko Worldwide, LLC's Motion to Stay Proceedings is DENIED.

"In a contract dispute in which the parties' agreement contains a forum selection clause, a threshold issue in a forum non conveniens motion is whether the forum selection clause is mandatory or permissive. A mandatory clause ordinarily is given effect without any analysis of convenience; the only question is whether enforcement of the clause would be unreasonable. But, if the clause merely provides for submission to jurisdiction and does not expressly mandate litigation exclusively in a particular forum, then the traditional forum non conveniens analysis applies." (*Korman v. Princess Cruise Lines, Ltd.* (2019) 32 Cal.App.5th 206, 215 (cleaned up).)

Here, the forum selection clause is mandatory because it states the parties waive any right to change venue. (ROA 22, Ex. 1.)

Monster argues Seko is bound by the Warehouse Agreement as a third-party beneficiary and agent of CHR and, thus, normal forum non conveniens analysis does not apply here and Seko must show the enforcing the forum selection clause is unreasonable.

"[T]here are 'six theories by which a nonsignatory may be bound to arbitrate: "(a) incorporation by reference; (b) assumption; (c) agency; (d) veil-piercing or alter ego; (e) estoppel; and (f) third-party beneficiary." ' " (*Jensen v. U-Haul Co. of California* (2017) 18 Cal.App.5th 295, 300.) " 'The California cases binding nonsignatories to arbitrate their claims fall into two categories. In some cases, a nonsignatory was required to arbitrate a claim because a benefit was conferred on the nonsignatory as a result of the contract, making the nonsignatory a third party beneficiary of the arbitration agreement. In other cases, the nonsignatory was bound to arbitrate the dispute because a preexisting relationship existed between the nonsignatory and one of the parties to the arbitration agreement, making it equitable to compel the nonsignatory to also be bound to arbitrate his or her claim.' " (*Ibid*.)

Here, Seko is a third-party beneficiary to the contract and had performed under the contract and pursuant to the contractual relationship for several years before the dispute arose.

		"A third party beneficiary is someone who may enforce a contract because the contract is made expressly for his benefit. The test for determining whether a contract was made for the benefit of a third person is whether an intent to benefit a third person appears from the terms of the contract." (*Jensen, supra*, 18 Cal.App.5th 295, 301 (cleaned up).) "The rules are the same for third parties who are agents of a party to a contract. An agent for a party to a contract not made with or in the name of the agent is not a real party in interest with standing to sue on the contract. [Citations; see *Epic Communications, Inc. v. Richwave Technology, Inc.* (2009) 179 Cal.App.4th 314, 334, [agents ordinarily do not have "a cause of action based upon some third person's violation of its principal's rights," and "[w]ithout some breach of a duty owed *to him,* [the agent] has no power to sue on the principal's claim"].) An agent acting on behalf of a principal might have standing to sue, however, if the agent has some beneficial interest in the subject matter. For example, an agent has standing to sue where a contract creates obligations for the agent as a fiduciary to the principal." (*Cohen v. TNP 2008 Participating Notes Program, LLC* (2019) 31 Cal.App.5th 840, 856 (cleaned up).) The contract specifically refers to Seko's warehouse in Jacksonville in Exhibit B. (ROA 22, Ex. 1.) Additionally, similar to GSDMIA, if Monster were to fail to remit payment under the terms of the contract, Seko would be able to claim Monster breached its obligations under the contract to Seko to pay for use of its warehouse in storing Monster's goods. As the party owning the warehouse, it is evident the Agreement intends to benefit that party. Hypothetically, if Monster did not pay CHR/Seko/GSDMIA and CHR was to for some reason not request payment, Seko would undoubtedly be able to make a claim against Monster on its own behalf pursuant to the terms of the Agreement. To not allow Seko to do so would create an absurd result where Monster and Seko do not owe each other any obligations despite Seko storing Monster's goods. As the Florida court put it, it would be the "Wild West" if such was allowed. "When a case involves a mandatory forum selection clause, it will usually be given effect unless it is unfair or unreasonable. Both California and federal law presume a contractual forum selection clause is valid and place the burden on the party seeking to overturn the forum selection clause." (*Korman, supra*, 32 Cal.App.5th 206, 216.) Thus, Seko must show that the forum selection clause is unreasonable. Seko presents no argument as to why the forum selection clause is unreasonable and should not be enforced. It only argues it is not subject to the Agreement and, thus, the forum selection clause cannot be enforced against it.

3. MOTION TO APPEAR PRO HAC VICE

The application of attorney Daniel Thiel to appear pro hac vice as counsel for Defendant Seko Worldwide, LLC in this matter is hereby GRANTED pursuant to California Rules of Court, rule 9.40.

4. MOTION TO QUASH SERVICE OF SUMMONS

Defendant GSDMIA, Inc.'s Motion to Quash Service of Summons is GRANTED.

"A court of this state may exercise jurisdiction on any basis not inconsistent with the Constitution of this state or of the United States." (Code Civ. Proc., § 410.10.)

> California courts may exercise personal jurisdiction on any basis consistent with the Constitutions of California and the United States. (Code Civ. Proc., § 410.10.) The exercise of jurisdiction over a nonresident defendant comports with these Constitutions "if the defendant has such minimum contacts with the state that the assertion of jurisdiction does not violate ' "traditional notions of fair play and substantial justice." ' " (*Vons Companies, Inc. v. Seabest Foods, Inc.* (1996) 14 Cal.4th 434, 444, (*Vons*), quoting *Internat. Shoe Co. v. Washington* (1945) 326 U.S. 310, 316, (*Internat. Shoe*).)
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> Under the minimum contacts test, "an essential criterion in all cases is whether the 'quality and nature' of the defendant's activity is such that it is 'reasonable' and 'fair' to require him to conduct his defense in that State." (*Kulko v. California Superior Court* (1978) 436 U.S. 84, 92, quoting *Internat. Shoe, supra,* 326 U.S. at pp. 316–317, 319.) "[T]he 'minimum contacts' test ... is not susceptible of mechanical application; rather, the facts of each case must be weighed to determine whether the requisite 'affiliating circumstances' are present." (*Kulko,* at p. 92, quoting *Hanson v. Denckla* (1958) 357 U.S. 235, 246, (*Hanson*).) "[T]his determination is one in which few answers will be written 'in black and white. The greys are dominant and even among them the shades are innumerable.' " (*Kulko,* at p. 92, quoting *Estin v. Estin* (1948) 334 U.S. 541, 545.)
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> In making this determination, courts have identified two ways to establish personal jurisdiction. "Personal jurisdiction may be either general or specific." (*Vons, supra,* 14 Cal.4th at p. 445.) In this case, DVD CCA does not contend that general jurisdiction exists. We therefore need only consider whether specific jurisdiction exists.
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> When determining whether specific jurisdiction exists, courts consider the " 'relationship among the defendant, the forum, and the litigation.' " (*Helicopteros Nacionales de Colombia v.*

		Hall (1984) 466 U.S. 408, 414, quoting *Shaffer v. Heitner* (1977) 433 U.S. 186, 204.) A court may exercise specific jurisdiction over a nonresident defendant only if: (1) "the defendant has purposefully availed himself or herself of forum benefits" (*Vons, supra,* 14 Cal.4th at p. 446); (2) "the 'controversy is related to or "arises out of" [the] defendant's contacts with the forum' " (*ibid.,* quoting *Helicopteros, supra,* 466 U.S. at p. 414); and (3) " 'the assertion of personal jurisdiction would comport with "fair play and substantial justice" ' " (*Vons, supra,* 14 Cal.4th at p. 447, quoting *Burger King Corp. v. Rudzewicz* (1985) 471 U.S. 462, 472–473, (*Burger King*)). "The purposeful availment inquiry ... focuses on the defendant's intentionality. [Citation.] This prong is only satisfied when the defendant purposefully and voluntarily directs his activities toward the forum so that he should expect, by virtue of the benefit he receives, to be subject to the court's jurisdiction based on" his contacts with the forum. (*U.S. v. Swiss American Bank, Ltd.* (1st Cir.2001) 274 F.3d 610, 623–624 (*Swiss American Bank*).) Thus, the " 'purposeful availment' requirement ensures that a defendant will not be haled into a jurisdiction solely as a result of 'random,' 'fortuitous,' or 'attenuated' contacts [citations], or of the 'unilateral activity of another party or a third person.' [Citations.]" (*Burger King, supra,* 471 U.S. at p. 475.) "When a [defendant] 'purposefully avails itself of the privilege of conducting activities within the forum State,' [citation], it has clear notice that it is subject to suit there, and can act to alleviate the risk of burdensome litigation by procuring insurance, passing the expected costs on to customers, or, if the risks are too great, severing its connection with the State." (*Pavlovich v. Superior Court* (2002) 29 Cal.4th 262, 268-269.) GSDMIA has not purposely availed itself of the privileges and protections of California sufficiently to establish minimum contacts with California such that exercising jurisdiction over GSDMIA would not offend the notions of fair play and substantial justice. GSDMIA is a third-party beneficiary of the Warehouse Agreement which contains a forum selection clause providing that California is the mandatory forum. "[T]here are 'six theories by which a nonsignatory may be bound to arbitrate: "(a) incorporation by reference; (b) assumption; (c) agency; (d) veil-piercing or alter ego; (e) estoppel; and (f) third-party beneficiary." ' " (*Jensen v. U-Haul Co. of California* (2017) 18 Cal.App.5th 295, 300.) " 'The California cases binding nonsignatories to arbitrate their claims fall into two categories. In some cases, a nonsignatory was required to arbitrate a claim because a benefit was conferred on the nonsignatory as a result of the

		contract, making the nonsignatory a third party beneficiary of the arbitration agreement. In other cases, the nonsignatory was bound to arbitrate the dispute because a preexisting relationship existed between the nonsignatory and one of the parties to the arbitration agreement, making it equitable to compel the nonsignatory to also be bound to arbitrate his or her claim.' " (*Ibid*.) Here, GSDMIA is a third party beneficiary of the Agreement as an agent of Seko. "A third party beneficiary is someone who may enforce a contract because the contract is made expressly for his benefit. The test for determining whether a contract was made for the benefit of a third person is whether an intent to benefit a third person appears from the terms of the contract." (*Jensen, supra*, 18 Cal.App.5th 295, 301 (cleaned up).) "The rules are the same for third parties who are agents of a party to a contract. An agent for a party to a contract not made with or in the name of the agent is not a real party in interest with standing to sue on the contract. [Citations; see *Epic Communications, Inc. v. Richwave Technology, Inc.* (2009) 179 Cal.App.4th 314, 334, [agents ordinarily do not have "a cause of action based upon some third person's violation of its principal's rights," and "[w]ithout some breach of a duty owed *to him,* [the agent] has no power to sue on the principal's claim"].) An agent acting on behalf of a principal might have standing to sue, however, if the agent has some beneficial interest in the subject matter. For example, an agent has standing to sue where a contract creates obligations for the agent as a fiduciary to the principal." (*Cohen v. TNP 2008 Participating Notes Program, LLC* (2019) 31 Cal.App.5th 840, 856 (cleaned up).) The contract specifically refers to Seko's warehouse in Jacksonville in Exhibit B. (ROA 22, Ex. 1.) Additionally, if Monster were to fail to remit payment under the terms of the contract, GSDMIA would be allowed to claim Monster breached its obligations under the contract to GSDMIA to pay its servicing in storing Monster's goods. As the party operating the warehouse, it is evident the Agreement intends to benefit that party. However, GSDMIA has not availed itself of any other privilege or protection of California. GSDMIA accepted Monster's products to store in Florida and its warehouse is in Florida. Finally, merely communicating with a California corporation has not been deemed to be sufficient to show a party has purposedly availed itself of California's privileges or protections. Plaintiff points to no other contacts by GSDMIA with California. Accordingly, the Motion to Quash is granted.
8.	**INFINITE LOWE RESIDENCE INC. MECIJA 2024-01433225**	**MOTION FOR LEAVE TO FILE AMENDED COMPLAINT** Plaintiffs' Motion for Leave to File Third Amended Complaint is CONTINUED to 9/22/26.

		Plaintiffs have failed to file a proof of service of the motion on Defendants. Plaintiffs must file a proof of timely service before the continued hearing date or the motion will be denied. (Code Civ. Proc. § 1005; Cal. Rules of Court, Rule 3.1300.)
9.	**SOKEARSIN VS. BUSHARD PROPERTIES, LLC** **2025-01508998**	**MOTION FOR LEAVE TO FILE CROSS-COMPLAINT** Defendant Bushard Properties, LLC's unopposed motion for leave to file a cross-complaint is GRANTED. A defendant or cross-defendant may file a cross-complaint against "a person alleged to be liable thereon, whether or not such person is already a party to the action, if the cause of action asserted in his cross-complaint (1) arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause brought against him or (2) asserts a claim, right, or interest in the property or controversy which is the subject of the cause brought against him." (Code Civ. Proc., § 428.10, subd. (b).) Code of Civil Procedure section 428.50 provides: (a) A party shall file a cross-complaint against any of the parties who filed the complaint or cross-complaint against him or her before or at the same time as the answer to the complaint or cross-complaint. (b) Any other cross-complaint may be filed at any time before the court has set a date for trial. (c) A party shall obtain leave of court to file any cross-complaint except one filed within the time specified in subdivision (a) or (b). Leave may be granted in the interest of justice at any time during the course of the action. Permission to file an untimely permissive cross-complaint is "solely within the trial court's discretion." (*Crocker Nat'l Bank v. Emerald* (1990) 221 Cal. App.3d 852, 864.) If the cross-complaint is compulsory, the court "shall grant" leave to file the cross-complaint as long as defendant is acting in good faith. (Code Civ. Proc., § 426.50; see *Silver Organizations Ltd. v. Frank* (1990) 217 Cal.App.3d 94, 98-99 [even on "eve of trial," leave to file compulsory cross-complaint mandatory absent bad faith].) Here, Defendant moves for leave to file a cross-complaint against South Coast Paving, Inc. ("South Coast Paving"), Ada Inspection Plus, LLC ("ADA Inspection"), and ROES 1-50 for indemnity, contribution, and declaratory relief. "Cross complaints for comparative equitable indemnity would appear virtually always transactionally related to the main action." (*Time for Living, Inc. v. Guy Hatfield Homes/All American Develop. Co.* (1991) 230 Cal.App.3d 30, 38.)

		Defendant's evidence establishes it acted diligently and in good faith. The complaint alleges Plaintiff tripped and fell in a parking lot owned by Defendant due to the grading of the slope at issue that exceeded maximum incline grades permitted under the California Building Code. (See Complaint, p. 6:4-14.) Defendant states that less than two months before the alleged incident, it contracted South Coast Paving and ADA Inspection to partially repave the parking lot. (Vermani Decl., ¶¶ 4, 9, Ex. B.) Defendant confirmed the grounds for filing a cross-complaint after it completed its investigation into the factual circumstances surrounding the complaint, including the contractual obligations between Defendant and South Coast Paving and ADA Inspection. (Vermani Decl., ¶¶ 7-8.) Defendant filed the instant motion on 3/9/26, less than three months after it filed its answer. Plaintiff has not opposed the motion and, therefore, has not established Defendant acted in bad faith. The court finds granting leave will be in the interest of justice and serve the purpose of cross-complaints: "to have a complete determination of a controversy among the parties in one action, thus avoiding circuity of action and duplication of time and effort." (*City of Hanford v. Superior Court* (1989) 208 Cal.App.3d 580, 587.) The motion is granted. Defendant is ordered to file its cross-complaint within five (5) days.
10.	**GUEVARA VS. ALHALLAQ** **2025-01492960**	**MOTION FOR LEAVE TO FILE AMENDED COMPLAINT** Plaintiff Jens Kevin Guevara's motion for leave to file a second amended complaint is CONTINUED to 9/15/26 at 9:00 a.m., in Dept. 32. Plaintiff has not submitted a proof of service showing the moving papers were served on Defendants. (See Code Civ. Proc. § 1005, subd. (b); Cal. Rules of Court, rule 3.1300, subd. (c).) As no response or opposition was filed the Court cannot deem this defect waived. Plaintiff is ORDERED to file a Proof of Service showing the moving papers were served on Defendants at least 5 court days before the CONTINUED hearing.
11.	**ERBRICK VS. SPLITZ BY AGGIE** **2025-01507047**	**MOTION TO SET ASIDE/VACATE DEFAULT AND JUDGMENT** Defendants Gregg Hale and Splitz by Aggie's Motion to Set Aside Default is DENIED. <u>Code of Civil Procedure § 473</u>

		While Defendants do not cite a specific statute, Defendants appears to move to set aside the default entered against them pursuant to Code of Civil Procedure section 473, subdivision (b), which permits the court to "relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." While "[a] default and default judgment may be set aside pursuant to the provisions of Code of Civil Procedure, section 473, subdivision (b), [] the motion must be made within six months after entry of the default." (*Manson, Iver & York v. Black* (2009) 176 Cal.App.4th 36, 42.) The Court entered default against Defendants on 12/20/25 (ROA 21, 22.) Defendants' motion was filed on 3/10/26 and is therefore timely. Defendants contend they "did not know I had to send a response letter to the court stating that I will be there January 30, 2026 after I was served the paperwork to set aside the defaults to all the defendants." (ROA 30.) "Pro. per. litigants are held to the same standards as attorneys." (*Kobayashi v. Superior Court* (2009) 175 Cal.App.4th 536, 543 [citations omitted].) Mistake is not a ground for relief when it is the result of general ignorance of the law. (*Kramer v. Traditional Escrow, Inc.* (2020) 56 Cal.App.5th 13, 32 [citation omitted].) Defendants' contention they were not aware they were required to respond is not grounds for relief under section 473. Moreover, section 473, subdivision (b) provides, "[a]pplication for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted . . .." Defendants have not included a copy of the answer to the motion.
12.	**GOVEA VS. CITY OF FULLERTON** **2023-01360733**	**DEMURRER TO AMENDED CROSS-COMPLAINT** Cross-defendant United Specialty Insurance Company's (USIC) Demurrer to Plaintiff's Second Amended Complaint is CONTINUED to 9/15/26, at 9:00 a.m. in Department C32 as USIC's counsel did not sufficiently meet and confer prior to filing the demurrer. Before filing a demurrer, the moving party shall meet and confer with the opposing party in person, by telephone, or by video conference at least 5 days before a responsive pleading is due to see if a resolution can be reached on the objections to the pleading. (Code Civ. Pro., § 430.41, subds. (a), (a)(2).)

		Counsel for USIC states his office sent City's counsel an email setting forth grounds for demurrer on 4/8/26. (Schmitthenner Decl., ¶ 3, Ex. 1.) City's counsel then sent an email response the same day. (Schmitthenner Decl., ¶ 3, Ex. 1.) Near the end of her email, counsel for City states, "The timeliness of this 'meet and confer' is questionable – isn't your response already due? You had previously informed me that you were going to file a demurrer and provided an estimated time. Was this a good faith meet and confer?" This does not satisfy the meet and confer requirement. The Court ORDERS the parties to meaningfully meet and confer in person, by telephone, or by video conference (email/letter is insufficient) concerning the issues raised in the demurrer. USIC is to file and serve a declaration no later than nine (9) court days before the hearing date describing the parties' meet and confer efforts, and specifying what issues have been resolved, or remain for the Court to resolve. If no declaration is timely filed, the Court will construe this to mean that the issues have been resolved and will take the demurrer off-calendar.
13.	**CABRERA VS. VOLKSWAGEN A.G. 2026-01541961**	**1. DEMURRER TO COMPLAINT** Defendants' demurrer to the seventh and eighth causes of action is SUSTAINED with 20 days leave to amend. The demurrer to the remaining causes of action is OVERRULED. Defendants demur to the fifth through ninth causes of action of the complaint. Plaintiff has not filed an opposition. <u>Fifth and Sixth Causes of Action - Violations of Business and Professions Code §§ 17200 and 17500</u> The fifth and sixth causes of action for violations of Business and Professions Code §§ 17200 and 17500 are alleged against all defendants. Defendants argue these causes of action fail because the complaint does not state facts sufficient to state a cause of action and because Plaintiff has an adequate remedy at law. <u>Sufficient Facts to State a Cause of Action</u> The complaint generally alleges Defendants engaged in unlawful business practices by placing a defective vehicle into the stream of commerce without warning the general public or remedying the defects and made statements that were untrue or misleading regarding this vehicle model's safety, reliability, and functionality through advertising, marketing, and other publications. Although Plaintiff pleads general allegations in support of these causes of action, the complaint provides Defendants "the necessary information to permit [them] to gather and preserve the relevant

materials and begin to conduct discovery and prepare a defense." (*Pointe San Diego Residential Community, L.P. v. Procopio, Cory, Hargreaves & Savitch, LLP* (2011) 195 Cal.App.4th 265, 278.)

<u>Adequate Remedy at Law</u>

Sections 17200 and 17500 are "subject to fundamental equitable principles, including inadequacy of the legal remedy." (*Prudential Home Mortg. Co. v. Superior Court* (1998) 66 Cal.App.4th 1236, 1249.) On this basis, these claims must be dismissed because Plaintiff has adequate remedies at law since Plaintiff has alleged Song Beverly Act violations. Defendants have not cited any California state court cases to support their conclusion. Instead, Defendants rely exclusively on unreported federal court cases. The court declines to follow them.

Therefore, the demurrer to the fifth and sixth causes of action is overruled.

<u>Seventh Cause of Action – Negligent Misrepresentation</u>

The seventh cause of action for negligent misrepresentation is alleged against all defendants. Defendants argue the claim is barred by the economic loss rule and is not plead with the requisite specificity.

<u>Economic Loss Rule</u>

Defendants argue the economic loss rule bars this claim because Plaintiff does not allege any personal injuries or other damages besides economic losses.

As explained in *Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1: "The rule itself is deceptively easy to state: In general, there is no recovery in tort for negligently inflicted 'purely economic losses,' meaning financial harm unaccompanied by physical or property damage." (*Id.* at 20; citation omitted.) "But the economic loss rule does not act as an absolute bar to tort recovery in every case in which the parties have a contractual relationship." (*Id.* at 23.) "Courts generally permit tort suits if the defendant allegedly violated a duty rooted in tort principles that is independent of the parties' contractual rights and obligations and exposed the plaintiff to a risk of harm beyond the parties' reasonable contemplation when they entered into the contract." (*Id.*)

Here, the complaint alleges such an independent tort duty, i.e. "a statutory duty under the Vehicle Code not to make false or misleading statements to Plaintiff." (Complaint, ¶ 103.)

		<u>Specificity</u> To state a cause of action for negligent misrepresentation, a plaintiff must plead: "(1) a representation as to a material fact, (2) representation is untrue, (3) regardless of the actual belief, the defendant made the representation without a reasonable ground for believing it true, (4) intent to induce reliance, (5) justifiable reliance by plaintiff who does not know the representation is false, and (6) damage." (*Masters v. San Bernardino Cnty. Emps. Ret. Ass'n* (1995) 32 Cal.App.4th 30, 40 n.6.) Where fraud is alleged against a corporate defendant, the plaintiff must also plead "the names of the persons who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written." (*Cansino v. Bank of Am*. (2014) 224 Cal. App.4th 1462, 1469) "In California, fraud must be pled specifically; general and conclusory allegations do not suffice . . . This particularity requirement necessitates pleading *facts* which show how, when, where, to whom, and by what means the representations were tendered." (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645 [emphasis in original].) In the case of a corporate defendant, "the plaintiff must allege the names of the persons who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written." (*Ibid*.) Here, Plaintiff has failed to plead negligent misrepresentation with the requisite specificity. The complaint alleges "Defendants made the following misrepresentations to Plaintiff: (1) misrepresenting the condition of the VEHICLE; (2) misrepresenting an intent to thoroughly inspect and go through the VEHICLE prior to Plaintiff taking delivery; (3) misrepresenting the prices and need for additional service contracts and accessories; (4) misrepresenting the safety of the VEHICLE; (5) providing false assurances about the safety and reliability of the VEHICLE; (6) taking advantage of Plaintiff to lease and/or sell a VEHICLE that was in need of repairs only to charge them for repairs that should have made prior to lease and/or sale; (7) making false promises about the merchantability and existence of an implied warranty of merchantability [sic] (8) establishing policies and procedures that take advantage consumers; (9) having no policies and procedures in place to confirm that any VEHICLE being offered for lease and/or sale does in fact adhere with the standards of the vehicle industry; (10) directing Plaintiff to sign false, and misleading documents; and (11) intentionally leasing and/or selling VEHICLE that had known damages, defects, and concealing those facts from Plaintiff." (Complaint, ¶ 99.) The complaint fails to plead with particularity which defendant made the misrepresentation, the identity of the person(s) who made the allegedly fraudulent representations on behalf of that defendant, their authority of the person(s) to speak, and when each

representation was made. Plaintiff also does not allege facts to show that any defendant made a misrepresentation without a reasonable ground for believing it was true.

Therefore, the demurrer to this cause of action is sustained with leave to amend.

Eighth Cause of Action – Fraudulent Concealment

The eighth cause of action is alleged against Volkswagen AG and VWGoA who argue the claim is not plead with the requisite specificity. Defendants are correct.

In fraudulent inducement cases based on exclusive knowledge, the complaint must specifically plead "(1) the content of the omitted facts, (2) defendant's awareness of the materiality of those facts, (3) the inaccessibility of the facts to plaintiff, (4) the general point at which the omitted facts should or could have been revealed, and (5) justifiable and actual reliance, either through action or forbearance, based on the defendant's omission. '[M]ere conclusionary allegations that the omissions were intentional and for the purpose of defrauding and deceiving plaintiff[] . . . are insufficient for the foregoing purposes.'" (*Rattagan, supra,* 17 Cal.5th at p. 43, quoting *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 347.)

Here, complaint does not plead the specific facts Defendants failed to disclose; the specific facts establishing Defendants knew of those facts at the time Plaintiff acquired the subject vehicle; what advertisements, brochures, or other materials where Defendants could have disclosed the omitted facts that Plaintiff reviewed and relied upon in purchasing the subject vehicle; how long before purchasing the vehicle he viewed them; whether those materials, if any, were prepared by VWAG and VWGoA or someone else (such as a dealership); specific facts establishing Defendants intended to defraud Plaintiff by either making affirmative statements or failing to disclose material facts; and the person(s) who made the false representations or otherwise engaged in the fraudulent conduct.

Therefore, the demurrer to this cause of action is sustained with leave to amend.

Ninth Cause of Action - Negligent Repair

The nineth cause of action for negligent repair is alleged against Defendants Volkswagen of Garden Grove and Norm Reeves Volkswagen Superstore. Defendants argue this claim is barred by the economic loss rule and fails to allege any facts to support a negligence claim.

Economic Loss

As mentioned above, the economic loss rule does not bar tort claims "if the defendant allegedly violated a duty rooted in tort principles that is independent of the parties' contractual rights and obligations and exposed the plaintiff to a risk of harm beyond the parties' reasonable contemplation when they entered into the contract." (Rattagan, supra, 17 Cal.5th at p. 23.)

As with the negligent misrepresentation claim, the negligent repair claim alleges such an independent tort duty, i.e. "a duty to Plaintiff to use ordinary care and skill in the repair, storage, preparation, and replacement of components in the VEHICLE, in accordance with the manufacturer and industry standards and procedures." (Complaint, ¶ 102.)

Sufficient Facts to Constitute a Cause of Action

The elements of negligence are: (1) defendant's legal duty to conform to a standard of conduct to protect the plaintiff; (2) defendant failed to meet this standard of conduct; (3) causation; (4) damages. (*Ladd v. County of San Mateo* (1996) 12 Cal.4th 913, 917; see also *Bockrath v. Aldrich Chemical Co., Inc*. (1999) 21 Cal.4th 71, 80 [causation may be alleged generally].)

While Plaintiff's allegations are somewhat sparse, they sufficiently allege each element. (Complaint, ¶¶ 120 [duty created by delivery of vehicle for repairs, and to perform repairs "in accordance with the manufacturer and industry standards and procedures"]; ¶¶ 26-29, 121-122 [breach by failing "to properly diagnose the issues affecting the VEHICLE" and "us[ing] subpar and or non-OEM remanufactured components during the repair" with knowledge that "these components and or parts were not of the same quality as the original components and or parts"]; ¶¶ 123-124 [proximately caused damages].)

Therefore, the demurrer to this cause of action is overruled.

2. MOTION TO QUASH SERVICE OF SUMMONS

The Motion to Quash Service of Summons and Complaint by Defendant Volkswagen AG is GRANTED.

Defendant Volkswagen AG specially appears and moves under Code Civil Procedure section 418.10 for an order quashing service of summons and dismissing he claims against it for lack of personal jurisdiction.

Section 418.10, subdivision (a) provides that a defendant may serve and file a notice of motion "[t]o quash service of summons on the ground of lack of jurisdiction of the court over him or her." Once a

		defendant files a motion to quash challenging jurisdiction under section 418.10, plaintiff has the burden of proof of demonstrating that sufficient minimum contacts exist between defendant and the forum state to justify imposition of personal jurisdiction. (*Mihlon v. Superior Court* (1985) 169 Cal.App.3d 703, 710.) Plaintiff must do so by a preponderance of the evidence. (*Ziller Electronics Lab GmbH v. Superior Court* (1988) 206 Cal.App.3d 1222, 1232.) Moreover, plaintiff must do so by competent evidence; unverified pleadings are insufficient (*Mihlon v. Superior Court, supra* at 710), as are hearsay declarations (*Floveyor Int'l, Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 796). California has the broadest kind of "long arm" statute, allowing CA courts to "exercise jurisdiction on any basis not inconsistent with the Constitution of this state or of the United States." (Code Civ. Proc., § 410.10.) Due process allows a state court to exercise personal jurisdiction over a nonresident defendant who has "minimum contacts" with the forum state: a relationship between the nonresident and the forum state which is such that the exercise of jurisdiction does not offend "traditional notions of fair play and substantial justice." (*International Shoe Co. v. Washington* (1945) 326 U.S. 310, 316.) Such personal jurisdiction may be general or specific. General jurisdiction arises when a defendant maintains "continuous and systematic" contacts with the forum state even when the cause of action has no relation to those contacts. (*Helicopteros Nacionales de Colombia, S.A. v. Hall* (1984) 466 U.S. 408, 414.) In contrast, even where general jurisdiction does not exist, a nonresident defendant may still be subject to specific jurisdiction if the controversy is related to or arises out of defendant's contacts with the forum state. (*Id.*) There is a 3-part test to determine whether specific jurisdiction exists: (1) "defendant has purposefully availed himself or herself of forum benefits;" (2) "the controversy is related to or 'arises out of' a defendant's contacts with the forum;" and (3) "[o]nce it has been decided that a defendant purposefully established minimum contacts within the forum State, these contacts may be considered in light of other factors to determine whether the assertion of personal jurisdiction would comport with 'fair play and substantial justice.'" (*Vons Companies, Inc. v. Seabest Foods, Inc.* (1996) 14 Cal.4th 434, 446-448; internal citations omitted.) Plaintiff concedes that general jurisdiction does not apply since the opposition is silent on this point. Instead, Plaintiff argues specific jurisdiction exists under a steam-of-commerce theory. Plaintiff has not provided sufficient evidence to establish specific jurisdiction.

Purposeful Availment and Relatedness

"Purposeful availment exists whenever the defendant purposefully and voluntarily directs its activities toward the forum state in an effort to obtain a benefit from that state." (*Snowney v. Harrah's Entertainment, Inc.* (2002) 35 Cal.4th 1054, 1067.) Whether the controversy "is related to or arises out of defendants' contacts with California" is satisfied if there is a substantial nexus or connection between the defendants' forum activities and the plaintiff's claim." (*Id*. at 1068.)

Regarding the stream of commerce theory: "When a corporation 'purposefully avails itself of the privilege of conducting activities within the forum State,' [citation], it has clear notice that it is subject to suit there, and can act to alleviate the risk of burdensome litigation by procuring insurance, passing the expected costs on to customers, or, if the risks are too great, severing its connection with the State. Hence, if the sale of a product of a manufacturer or distributor such as Audi or Volkswagen is not simply an isolated occurrence, but arises from the efforts of the manufacturer or distributor to serve directly or indirectly, the market for its product in other States, it is not unreasonable to subject it to suit in one of those States if its allegedly defective merchandise has there been the source of injury to its owner or to others. The forum State does not exceed its powers under the Due Process Clause if it asserts personal jurisdiction over a corporation that delivers its products into the *stream of commerce* with the expectation that they will be purchased by consumers in the forum State." (*World-Wide Volkswagen Corp. v. Woodson* (1980) 444 U.S. 286, 297-298; see also *L.W. v. Audi AG* (2025) 108 Cal.App.5th 95, 108–109 [explaining the stream-of-commerce theory.)

"'[M]ere foreseeability that a product may enter a foreign state is insufficient to establish minimum contacts with a forum state. An inquiry into a foreign defendant's purposeful availment of the forum state's benefits must find more than merely entering a product into the stream of commerce with knowledge the product might enter the forum state.'" (*L.W., supra,* 108 Cal.App.5th at p. 112, quoting *Bombardier Recreational Products, Inc. v. Dow Chemical Canada ULC* (2013) 216 Cal.App.4th 591, 602; see also *J. McIntyre Machinery, Ltd. v. Nicastro* (2011) 564 U.S. 873, 886 ["the stream-of-commerce metaphor cannot supersede either the mandate of the Due Process Clause or the limits on judicial authority that Clause ensures"].) However, "the United States Supreme Court has not agreed on exactly what more besides foreseeability must be shown." (*L.W., supra,* 108 Cal.App.5th at p. 112.)

Here, relying on Volkswagen AG's evidence, Plaintiff argues Volkswagen AG admits it designs and manufactures Volkswagen vehicles and exports them to defendant Volkswagen Group of America, Inc. ("VWGoA"), who is the exclusive importer of Volkswagen vehicles in the United States. Plaintiff also relies on

		Volkswagen AG's annual report, which states Volkswagen Group delivered 576,922 vehicles to customers in the U.S. during 2025 and Volkswagen Group Components, operating "under the umbrella of Volkswagen AG," employs approximately 58,000 people involved in developing and manufacturing vehicle components, and manufactures major vehicle systems. Plaintiff also provided evidence that he purchased the subject vehicle from an authorized Volkswagen dealership in Garden Grove, California and subsequently presented it to authorized Volkswagen dealerships in California on repeated occasions for warranty diagnosis and repair. Plaintiff argues this evidence establishes Volkswagen AG placed the subject vehicle into the U.S. market, which reached a California consumer and was supported through Volkswagen's authorized California dealership network. Plaintiff contends, under these circumstances, Volkswagen AG could reasonably anticipate being haled into a California court in an action arising from alleged defects in that vehicle. Concerning relatedness, Plaintiff merely recites the complaint's causes of action and points out that it specifically alleges Volkswagen AG manufactured a defective vehicle and components and intentionally concealed the defects from the Plaintiff and California consumers. The Court finds Plaintiff has established purposeful availment. However, he has not established relatedness. Plaintiff's Song-Beverly Act causes of action relate to alleged failures arising under the warranties accompanying the Subject Vehicle at the time of acquisition (Compl., ¶¶ 21, 31-65.), and functions as a vehicle for contractual damages. (See *Kwan v. Mercedes-Benz of North America, Inc.* (1994) 23 Cal.App.4th 174, 188 [The clear mandate of section 1794…is that compensatory damages recoverable for breach of the Act are those available to a buyer for a seller's breach of a sales contract."].) Volkwagen AG's evidence establishes that it "does not issue or administer warranties to consumers for Volkswagen vehicles sold or leased in the United States." (Piep Decl., ¶ 13.) Nor does VWAG have "authority nor control over VWGoA's decisions regarding administrating warranty claims submitted by authorized Volkswagen dealers in the United States." (Id.) Based on this evidence, there is no basis for Volkswagen AG to foresee being hailed into California courts for disputes over the handling of a warranty it did not issue, administer, guarantee, or otherwise have any involvement with. Plaintiff's remaining causes of action concern alleged representations made involving the advertisement, sale, or lease of the subject vehicle that Plaintiff alleges to be defective. (See generally, Compl.) Volkwagen AG's evidence establishes that it has no control over what vehicles are sold in California and does not advertise, market, or sell vehicles in California. (Piep Decl., ¶¶ 6, 8-9.)

		The stream of commerce cases Plaintiff relies upon are products liability cases that involve some sort of personal injury. (See *World-Wide Volkswagen Corp., supra,* 444 U.S. 286 [car accident resulting in injury]; *J. McIntyre Machinery, Ltd., supra,* 564 U.S. 873 [personal injury involving metal shearing machine]; *Vons Companies, Inc. supra,* 14 Cal.4th 434 [food safety causing E. coli outbreak]; *Ford Motor Company v. Montana Eighth Judicial District Court* (2021) 592 U.S. 351, [car accident resulting in death]; *L.W., supra* 108 Cal.App.5th 95 [personal injury caused by defective vehicle].) That is not the case here. Plaintiff does not allege personal injury caused by the alleged defects in the subject vehicle. Instead, Plaintiff only alleges economic damages. The facts alleged in this action relate to the sale of and warranty for the subject vehicle, which Volkswagen AG does not issue, administer or control. (Piep Decl., ¶ 13.) <u>Fair Play and Substantial Justice</u> Since Plaintiff has failed to meet his burden under the second prong, Volkswagen AG does not need to establish that exercise of jurisdiction would be unreasonable. Accordingly, the Motion to Quash is GRANTED. Plaintiff's complaint is DISMISSED as to Specially Appearing Defendant Volkswagen AG.
14.	**U.S. BANK NATIONAL ASSOCIATION VS. HUSSAIN 2025-01522674**	**MOTION FOR SUMMARY JUDGMENT AND/OR ADJUDICATION** The Motion for Summary Judgment/Adjudication by Plaintiff U.S. Bank National Association is GRANTED. Plaintiff moves for summary judgment or adjudication in its favor and against Defendants Khalid Hussain and Soleil Enterprises, Inc. a.k.a. Soleil Enterprises on the Complaint, which alleges breach of a credit card agreement with an outstanding balance of $45,645.16. <u>Legal Standard:</u> The elements of a claim for breach of contract are "(1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff." (*D'Arrigo Bros. of California v. United Farmworkers of America* (2014) 224 Cal.App.4th 790, 800.) Code of Civil Procedure section 437c(c) states, "The motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. In determining if the papers show that there is no triable issue as to any material fact, the court shall consider all of the evidence set forth in the papers, except the evidence to which objections have been made

		and sustained by the court, and all inferences reasonably deducible from the evidence, except summary judgment shall not be granted by the court based on inferences reasonably deducible from the evidence if contradicted by other inferences or evidence that raise a triable issue as to any material fact." <u>Application:</u> Plaintiff's Undisputed Facts show that Plaintiff and Defendants entered a written credit card agreement and Defendants ceased making payments on 7/24/24, leaving $45,645.16 due and owing. (Facts 1-12.) Plaintiff has complied with its duties under the agreement. (Fact 13.) Therefore, Plaintiff has met its initial burden as to its claim for breach of contract. Defendants have not filed an opposition to the motion as of 8/13/26. Therefore, the motion is granted.
15.	**JENKINS VS. GREENSKY 2021-01229679**	**MOTION FOR SUMMARY JUDGMENT AND/OR ADJUDICATION** Defendants GreenSky, LLC and Synovus Bank's unopposed motion for an order granting summary judgment, or in the alternative, summary adjudication, is GRANTED. <u>Plaintiff's Allegations</u> Plaintiff contracted with The House Next Door Remodeling and Construction (House Next Door) for home improvements. (FAC ¶ 11.) Plaintiff alleges House Next Door concealed they were not licensed contractors and negligently performed work that was defective and below industry standards. (FAC ¶¶ 15, 16.) Plaintiff further alleges House Next Door "utilized Plaintiff and his wife's identifies" to fraudulently obtain a $30,000 loan with GreenSky. (FAC ¶ 34.) Plaintiff alleges the loan was not executed by Plaintiff or his wife and that a lien was eventually placed on Plaintiff's property. (FAC ¶ 34.) <u>Second Cause of Action for Fraud</u> "The elements of fraud, which give rise to the tort action for deceit, are (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or 'scienter'); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage." (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638 [citations omitted].) The loan at issue in this matter was financed by Defendant Synovus Bank (Synovus) and serviced by Defendant GreenSky, LLC (GreenSky). (UMF No. 12.)

		The undisputed evidence demonstrates Synovus' sole role in the subject loan transaction was to provide financing. (UMF No. 16.) Synovus had no interaction with House Next Door or Plaintiff, had nothing to do with any of the work performed at Plaintiff's home by House Next Door, and had no knowledge of the licensing status or qualifications of House Next Door. UMF Nos. 14, 15, 16.) Similarly, GreenSky did not have any direct communications with Plaintiff regarding the transaction with House Next Door or the financing for the loan transaction. (UMF No. 17.) After a merchant is enrolled in GreenSky's merchant program, GreenSky checks the licensing status of the merchant. (UMF No. 9.) GreenSky confirmed House Next Door was a fully licensed contractor in California prior to the transactions with Plaintiff. (UMF No. 32.) Finally, in the Program Agreement, House Next Door represented to GreenSky that House Next Door "is duly organized, validly existing and in good standing under the laws of its jurisdiction of organization and has all requisite power and authority to carry on its business as presently conducted and is duly qualified or licensed to do business and is in good standing (where such concept is recognized under applicable law) in each jurisdiction where the nature of its business or the ownership or operation of its properties makes such qualification or licensing necessary, ..." (UMF No. 23.) Additionally, Defendants present evidence Plaintiff and his wife applied for a line of credit through the GreenSky program on 3/31/17. (UMF No. 24.) Plaintiff subsequently accepted the benefit of more than $30,000 in loan proceeds for work performed by House Next Door and made no less than 33 payments to GreenSky under the loan over a period of three years. (UMF Nos. 25, 26.) Plaintiff has not opposed the motion and therefore presents no evidence demonstrating any misrepresentations by Defendants regarding House Next Door's licensing status or qualifications or as to the loan at issue. Accordingly, while the burden has shifted to Plaintiff, Plaintiff has not met his burden of demonstrating a triable issue of material fact exists as to the fraud cause of action. <u>Third Cause of Action for Conspiracy to Defraud</u> "Civil conspiracy is not an independent cause of action. Instead, it is a theory of co-equal legal liability under which certain defendants may be held liable for 'an independent civil wrong' committed by others. . . . "Under a conspiracy theory of recovery, liability depends on the actual commission of a tort. . . . [T]he conspiring defendants must have actual knowledge that a tort is planned and concur in the scheme with knowledge of its unlawful purpose. Knowledge of the planned tort must be combined with intent to aid in its commission."

(*Navarette v. Meyer* (2015) 237 Cal.App.4th 1276, 1291-1292 [cleaned up].)

Plaintiff alleges Defendants conspired to have Plaintiff hire House Next Door to perform home improvement which was to be funded by Equity Wave and for Equity Wave to obtain a $300,000 lien on Plaintiff's property. (FAC ¶ 38.)

Equity Wave and Defendants are separate companies that were involved with separate loan transactions. (UMF No. 36.) Moreover, to the extent Plaintiff alleges conspiracy to defraud with respect to Synovus and GreenSky, Plaintiff fails to demonstrate a triable issue of material fact exists as to a fraud cause of action against these Defendants as discussed above.

Fourth Cause of Action for Elder Abuse

California Welfare & Institutions Code, section 15610.07, subdivision (a) defines "Abuse of an elder" as including financial abuse. "Financial abuse" of an elder includes when a person or entity takes or assists in taking real or personal property of an elder or dependent adult for a wrongful use or with intent to defraud, or both." (Cal. Welf. & Inst. Code, § 15610.30, subd. (a).

Plaintiff's cause of action for elder abuse is based on the allegation Plaintiff's loan agreement with Defendants was based on fraud. Specifically, Plaintiff alleges Defendants wrongfully appropriated money from Plaintiff through loan documents. (FAC ¶ 44.)

As Plaintiff fails to demonstrate a triable issue of material fact exists as to a fraud cause of action against these Defendants, Plaintiff also fails to demonstrate a triable issue of material fact exists as to the cause of action for elder abuse.

Sixth Cause of Action for Rescission

A contract may be extinguished by rescission. (*Marzec v. California Public Employees Retirement System* (2015) 236 Cal.App.4th 889, 913 [citing Civ. Code, § 1688].) "The court does not rescind contracts but only affords relief based on a party-effected rescission." (*Id*. at p. 914.) "The circumstances that entitle a party to rescind are set forth in Civil Code section 1689, subdivision (b), which provides, in part, that a contracting party may unilaterally rescind the contract if: (1) 'the consent of the party rescinding . . . was given by mistake, or obtained through duress, menace, fraud, or undue influence, exercised by or with the connivance of the party as to whom he rescinds, or of any other party to the contract jointly interested with such party.'" (*Ibid*.)

Plaintiff's cause of action for rescission is based on the allegation Plaintiff's loan agreement with Defendants was based on fraud.

		Specifically, Plaintiff alleges, "the loan agreements which Defendants fraudulently obtained through their conspiracy should also be rescinded." (FAC ¶ 54.) As Plaintiff fails to demonstrate a triable issue of material fact exists as to a fraud cause of action against these Defendants, Plaintiff also fails to demonstrate a triable issue of material fact exists as to the cause of action for rescission. <u>Seventh Cause of Action for Restitution</u> "Under the law of restitution, '[a]n individual is required to make restitution if he or she is unjustly enriched at the expense of another. A person is enriched if the person receives a benefit at another's expense.' . . . As a matter of law, an unjust enrichment claim does not lie where the parties have an enforceable express contract." (*Ibid*. [cleaned up].) (*Durell v. Sharp Healthcare* (2010) 183 Cal.App.4th 1350, 1370 [citations omitted].) bee Plaintiff alleges Defendants have been unjustly enriched by receiving monies for work illegally performed and for which Plaintiff did not receive the benefit thereof. (FAC ¶ 57.) As discussed above, the undisputed evidence demonstrates Synovus and GreenSky had no knowledge of House Next Door's allegedly unlicensed status at the time it performed work at Plaintiff's home. (UMF Nos. 9, 15, 23, 32.) To the extent Plaintiff's reference to "work illegally performed" includes allegations of fraud as to the loan agreement with Defendants, Plaintiff failed to demonstrate a triable issue of material fact exists as to its fraud cause of action for the reasons discussed above. Accordingly, Plaintiff and has not met his burden of demonstrating a triable issue of material fact exists as to restitution. <u>Eighth Cause of Action for Violation of Business and Professions Code §17200 et seq.</u> Business and Professions Code section 17200 et seq., prohibits unfair competition, including unlawful, unfair or fraudulent business acts. (*Cel-Tech Comm., Inc. v. Los Angeles Cellular Tele. Co.* (1999) 20 Cal.4th 163, 180.) "By proscribing 'any unlawful' business practice, 'section 17200 'borrows' violations of other laws and treats them as unlawful practices' that the unfair competition law makes independently actionable." (*Ibid*. [citations omitted].) Virtually any law or regulation can serve as predicate for a section 17200 "unlawful" violation. (*Paulus v. Bob Lynch Ford, Inc.* (2006) 139 Cal.App.4th 659, 681 [citation omitted].)

		This cause of action fails for the reasons discussed above, that is, Defendants had no knowledge of House Next Door's allegedly unlicensed status at the time it performed work at Plaintiff's home. (UMF Nos. 9, 15, 23 32.) Additionally, Plaintiff and his wife applied for a line of credit through the GreenSky program on 3/31/17. (UMF No. 24.) Plaintiff subsequently accepted the benefit of more than $30,000 in loan proceeds for work performed by House Next Door and made no less than 33 payments to GreenSky under the loan over a period of three years. (UMF Nos. 25, 26.) Accordingly, while the burden has shifted to Plaintiff, Plaintiff has not met his burden of demonstrating a triable issue of material fact exists as to a cause of action for violation of Business and Professions Code §17200 et seq. <u>First Cause of Action for Breach of Contract</u> "To state a cause of action for breach of contract, a party must plead the existence of a contract, his or her performance of the contract or excuse for nonperformance, the defendant's breach and resulting damage." (*Harris v. Rudin, Richman & Appel* (1999) 74 Cal.App.4th 299, 307 [citation omitted].) Plaintiff alleges Defendants departed from accepted trade standards, failed to complete the project for the contract price, and entered into a contract as an unlicensed contractor. (FAC ¶ 21.) This cause of action is brought against House Next Door and Does 1 through 10. To the extent Synovus, identified as Doe 1, is included in this cause of action, Plaintiff has not met his burden of demonstrating a triable issue of material fact exists as to the breach of contract cause of action as to Synovus. The undisputed evidence demonstrates Synovus was not a party to the contract between Plaintiff and House Next Door, was not responsible for performing any of the work on Plaintiff's house and had nothing to do with the actual construction work performed at Plaintiff's house. (UMF Nos. 40, 41.) Plaintiff has not opposed the motion and therefore presents no evidence demonstrating the breach of any contract relating to construction work performed on Plaintiff's property by Defendants. <u>Fifth Cause of Action for Negligence</u> "The elements of a cause of action for negligence are duty, breach, causation, and damages." (*Woolard v. Regent Real Estate Services, Inc.* (2024) 107 Cal.App.5th 783, 791 [citation omitted].)

		Plaintiff alleges "Defendants breached their duty to provide construction work at Plaintiff's residence according to acceptable industry standards and building code guidelines." (FAC ¶ 49.) As with the cause of action for breach of contract, Plaintiff's negligence cause of action is also brought against House Next Door and Does 1 through 10. To the extent Synovus, identified as Doe 1, is included in this cause of action, Plaintiff has not met his burden of demonstrating a triable issue of material fact exists as to the negligence cause of action as to Synovus for the reasons discussed above. The undisputed evidence demonstrates Synovus was not a party to the contract between Plaintiff and House Next Door, was not responsible for performing any of the work on Plaintiff's house and had nothing to do with the actual construction work performed at Plaintiff's house. (UMF Nos. 40, 41.) Plaintiff has not opposed the motion and therefore presents no evidence demonstrating the breach of any duty by Defendants relating to construction work performed on Plaintiff's property. Based on the above, the Court GRANTS Defendants GreenSky, LLC and Synovus Bank's Motion for Summary Judgment.
16.	**LAW OFFICES OF MARK B. PLUMMER, PC VS. NETWORKSOLUTIONS.COM 2020-01141868**	**MOTION FOR JUDGMENT ON THE PLEADINGS** Defendant Nili Alai's Motion for Judgment on the Pleadings as to Plaintiffs' First Amended Complaint (FAC) is DENIED. In the Motion, Defendant argues as follows: "Plaintiffs' First Cause of Action for Defamation fails because the First Amended Complaint does not plead the allegedly defamatory statements with the specificity required under California law, including the exact words alleged to be defamatory, the context in which the alleged statements appeared, the date of publication, the alleged publisher of any specific statement, and facts sufficient to establish falsity as to any specifically identified statement. Plaintiffs' Fourth Cause of Action for Declaratory Relief fails because it is derivative of the defective defamation claim and does not state an independent basis for relief." (Motion, p. 1.) Defendant contends that allegedly defamatory words must be pled with specificity. (Motion, pp. 5-6.) Here, Defendant argues, "The FAC does not satisfy this basic pleading requirement. Plaintiffs do not quote the alleged website statements. Plaintiffs do not attach the alleged statements. Plaintiffs do not identify the alleged website by name in the FAC. Plaintiffs do not identify the complete context in which the alleged statements appeared, the date of publication, or the alleged publisher of any specific statement." (Id. at p. 6.)

		In the FAC, Plaintiffs allege, "the Defendants, and each of them, agreed to maliciously make false and defamatory factual claims on a website intended to defame Plaintiffs in their professional capacity, such as the claim that Plaintiffs are incompetent, dishonest, the office was unsafe and unpermitted, and that Plaintiffs are vexatious litigants, none of which are true." (FAC, ¶ 6.) "The general rule is that the words constituting an alleged libel must be specifically identified, if not pleaded verbatim, in the complaint." (*Kahn v. Bower* (1991) 232 Cal.App.3d 1599, 1612, fn. 5.) Regarding the alleged statements about Plaintiffs' "incompetency" and "dishonesty," the Court of Appeal ruled they were not pled with sufficient specificity and regardless, those phrases were not found in the evidence presented in support of Plaintiffs' claims. (12/9/22 G060354 Opinion at pp. 11-13.) However, the foregoing language addressed the appeal of Defendant Nabili which resulted in the Court striking the "incompetent and dishonest" allegations, but not the allegations regarding Plaintiffs being vexatious litigants who operate an unsafe and unpermitted office. Following the Court of Appeal's ruling, Plaintiffs are no longer pursuing their "incompetent and dishonest" allegations against either Defendant. Plaintiffs dismissed the "incompetent and dishonest" allegations on 1/23/23. The Court of Appeal held the remaining allegations were not protected and did not decide whether the allegations regarding the unsafe/unpermitted office or vexatious litigant status were sufficiently specific. Therefore, the Court of Appeal's analysis regarding the specificity of the "incompetent and dishonest" statements is not determinative of this motion. The allegations that Defendants stated Plaintiffs operate an unsafe and unpermitted office and are vexatious litigants are sufficiently specific at the pleading stage to allow the Court to evaluate the viability of Plaintiffs' claims and to allow Defendants to conduct discovery regarding the allegations. Defendants are on notice as to the alleged content of the statements and they may conduct further discovery or investigation if necessary to obtain evidence of the verbatim statements, some of which have already been produced by Plaintiffs as part of the appeal. Therefore, the motion is denied.